

PUBLIC SUBMISSION

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General Comment

OpenAI, Meta, and Google are not currently hindered in AI development by a lack of copywritten content. They already scraped all of the copywritten content they found to be valuable and trained their models on it. Even with massive copyright theft, their models are still unreliable for most real-world enterprise workloads. More copyright theft will not make the models smarter; only more compute and better architecture will improve the performance.

OpenAI, Meta, and Google want legal exemptions not for technical reasons but to vacate lawsuits for theft already committed.

Western culture is built on strong IP protections that reward innovation. To undermine this would be a massive loss for society at large, hindering all future innovations. As we are already seeing in B2B and B2C AI deployments, AI has to be more than just plagiarism machines in order to solve real-world problems.

That said, if a compromise must be made, non-commercial AI models developed SOLELY FOR NATIONAL SECURITY purposes may be worth exempting from copyright law.